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SWIFT ACTION

Military courts don't take more than 12 months to decide a case.

COURT OF INQUIRY: Recommends one of two courses of action

■ **Administrative action:** A show cause notice is issued to the individual. Officers can be given loss of seniority, monetary fines, recordable censure or dismissal from service.

■ **Legal action:** Orders recording of summary of evidence, which usually leads to a court-martial proceeding.

COURT MARTIAL: Similar to a regular court room trial. Takes not more than 3-4 months. Army gears up to ensure witnesses are available in time.

SENTENCING: Confirms sentences handed out by the court. Takes between 3-4 months. In case of dismissal of senior officers, defence minister decides whether to reduce or confirm the sentence or dismiss the officer. Death sentences can be handed out in the rarest of rare cases.

Sudhir Sakhuja. "Corruption cases are cause for concern, but is not an alarming increase," says Lt. General (rtd) V.G. Patankar. "Perhaps the law of averages is at work, but if the trend continues for two more years then it is a deep malaise," he adds. What is worrying the army is the impact that corruption cases will have on the morale of junior officers and soldiers.

Major General Kapoor's case shocked the army also because he had evaded the scanner for long. He owned houses and shops in posh locations in the capital. The army lays great emphasis on moral courage and integrity, as two of an officer's five top attributes, along with physical ability, dependability and loyalty. These attributes are marked with stars in an officer's annual confidential report (ACR). The idea is to weed out the rotten apples before they rise. Army officials are worried that many of the corrupt senior officers were "nine pointers" or consistently scored high ACRs defeating the system. Kapoor, for instance, had been recently awarded the Vishist Seva Medal, the third highest peacetime award, for distinguished services. "The system which allows corrupt officers to rise is fatally flawed and the army may well have to reform

its officer management policy," says a senior army official.

A majority of such cases have surfaced in the army's Udhampur-based Northern Command simply because nearly one-third of the army is deployed here and the lines of communication are large and dispersed. But computerisation of records and speedy flow of information have made it difficult for the corrupt to hide their misdeeds. Also, an unofficial 'name and shame them' policy was started during the tenure of General N.C. Vij in 2004 to publicise corruption cases and ensure deterrence.

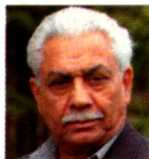
"Misappropriation of funds did happen earlier but the army must be commended for its policy of coming out over these misdemeanours," says former vice-chief of army staff Lt. General Vijay Oberoi. Officers from the fighting arms like infantry, armoured and artillery privately confess to silent reassurance in corruption cases. Most of them have been detected in 'services' like ordnance and supply corps that are tasked with procuring rations and supplies for troops and thus more vulnerable to corruption.

Major General Kapoor, an ordnance corps officer, was posted in the army's Jaipur-based south-west-

ern command. He was in the reckoning for the post of Director General Ordnance Services, a post which would have put him in charge of all stores and ammunition acquisitions made by the army. Lt. General Sahni was from the Army Service Corps which supplies soldiers with all their rations. "I haven't come across cases of infantrymen trying to sell tanks or assault rifles," says Major General (rtd) Himmat Singh Gill.

Punishment in most graft cases has been swift and merciless. Sometimes the quantum of punishment has far exceeded the misdemeanour, which happens after a court martial process that usually takes 12 months. Court martials hand out jail terms and strip officers of rank, salary and post-retirement benefits, forcing them into an ignominious anonymous life. Maybe it is a gradual erosion in the military's social standing—army officers are no longer sought out as bridegrooms nor inspire awe, that has given rise to the black sheep. Even the prospect of serving a jail sentence, that too three years after retirement, (under the Army Act) has not deterred some.

"Today if a soldier picks his nose in public, people will condemn him for unbecoming conduct", says Lt. General Oberoi. "The army is in the glasshouse because of its exceptional role over the past 60 years and people expect high standards of probity from the army", he adds. It is this discipline that the army needs to uphold. ■



"The army must be commended for speaking about the misdemeanours of its officers."

VIJAY OBEROI, FORMER VICE-CHIEF OF ARMY